

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1985

By: Ranson

AS INTRODUCED

An Act relating to elections; amending 26 O.S. 2021, Sections 7-119 and 7-127, which relate to conduct of elections; eliminating straight-party voting; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 7-119, is amended to read as follows:

Section 7-119. The voter shall vote by marking the ballot as prescribed by the Secretary of the State Election Board ~~for the party of his choice or for the~~ voter's choice of candidates ~~of his choice or for the answer he~~ choice the voter desires to select on each question.

SECTION 2. AMENDATORY 26 O.S. 2021, Section 7-127, is amended to read as follows:

Section 7-127. The following rules shall govern the counting and recounting of votes:

1. If the name of any person is written on a ballot, the name shall not be counted;

1 2. A valid vote shall be any mark prescribed by the Secretary
2 of the State Election Board made by voters indicating the voter's
3 choice of ~~party~~, candidate or issue on a ballot. Such marking shall
4 be hereinafter referred to as "valid markings". Such valid markings
5 located otherwise on the ballot shall not be counted;

6 3. Marks used to designate the intention of the voter, other
7 than those herein defined as valid markings, shall not be counted;

8 4. Failure to properly mark a ballot as to one or more
9 candidates or questions shall not of itself invalidate the entire
10 ballot if the same has been properly marked as to other candidates
11 or questions; and

12 5. ~~A valid marking marked for a political party shall be~~
13 ~~counted as a vote for each of the political party's candidates on~~
14 ~~that ballot, except that a valid marking marked for a candidate's~~
15 ~~name shall take precedence, for that office, over a valid marking~~
16 ~~for a political party. Provided, further, that if valid markings~~
17 ~~are marked for more than one political party on a ballot, the ballot~~
18 ~~shall not be counted for any party offices thereon; and~~

19 ~~6.~~ Any ballot or part of a ballot on which it is impossible to
20 determine the voter's choice of candidate shall be void as to the
21 candidate or candidates thereby affected.

22 SECTION 3. This act shall become effective November 1, 2025.
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24 60-1-11165 MJ 12/11/24